

23STCV14645 23STCV14645

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Case Number: 23STCV14645 Hearing Date: July 22, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: July

22, 2026

CASE NAME: Estate

of Keenan Anderson, et al. v. City of Los Angeles, et al.

CASE NO.: 23STCV14645

MOTION

FOR SUMMARY JUDGMENT, OR ALTERNATIVELY, SUMMARY ADJUDICATION

MOVING PARTY: Defendants

Jaime Duentes and Rasheen H. Ford

RESPONDING PARTY(S): Plaintiffs Estate of Keenan

Anderson, by and through Gabrielle Hansell, as administratrix to the estate,

and as guardian ad litem to S.K.A., a minor

REQUESTED RELIEF:

1. Summary

judgment on the entire complaint in moving defendants' favor; or

2. Summary

adjudication on Plaintiffs' first, second, third, and fourth causes of action, as to each moving defendant separately, in their favor as lacking merit.

TENTATIVE RULING:

1. Motion

for summary judgment/adjudication is DENIED as to the first, second, and fourth causes of action;

2. Motion

for summary adjudication is GRANTED as to the third cause of action.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On June 22, 2023, Plaintiffs Estate of Keenan Anderson, by and through, Gabrielle Hansell, as Administratrix to the Estate and as Guardian ad Litem to S.K.A., a minor (Plaintiffs) filed a Complaint against Defendant City of Los Angeles (City) with four causes of action for: (1) Civil Rights Violations, (2) Assault and Battery, (3) False Imprisonment, and (4) Negligence.¿

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On July 13, 2024, Plaintiff filed an Application and Order for Appointment of Guardian Ad Litem for S.K.A. which the court GRANTED.¿

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On September 8, 2023, City filed a Demurrer.¿

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On November 2, 2023, Plaintiffs filed fictitious name amendments that identified Rasheed Ford (DOE 2), Joshua Combs (DOE 3), and Stephen Feldman (DOE 4).¿

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On November 3, 2023, Plaintiffs filed a fictitious name

amendment that identified Jaime Fuentes (DOE 1).¿

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On January 18, 2024, Plaintiffs filed a fictitious name amendment that identified Christopher Walters (DOE 5).¿

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On January 18, 2024, Plaintiffs filed the operative First Amended Complaint (FAC) against Defendants City, Jaime Fuentes, Rasheen H. Ford, Joshua H. Coombs, Stephen J. Feldman, and Christopher J. Walters (collectively Defendants) with the same four causes of action as the original Complaint.¿

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According to the FAC, decedent Keenan Anderson (Anderson) died as a result of excessive force (use of a taser) by Defendants Coombs, Ford, Fuentes, Walters, and Feldman (the Officer Defendants) after a minor traffic collision. Plaintiffs allege City failed to properly train the Officer Defendants. Plaintiffs further allege that the Officer Defendants acted based on implicit bias against Anderson because he was African American.¿

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On May 3, 2024, Plaintiff filed a Motion for Discovery of Peace Officer Personnel Records which the court GRANTED.¿

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On May 23, 2024, Defendants City, Coombs, Feldman, and Walters (Moving Parties) filed a Demurrer to the FAC which the court SUSTAINED without leave to amend.

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On May 28, 2024, Defendants Fuentes and Ford filed an answer to the FAC.¿

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On July 31, 2024, the court issued a Corrected Order of Dismissal as to Defendant City of Los Angeles only.

On October 3, 2024, Defendants Combs, Feldman, and Walters filed an answer to the FAC.

On May 28, 2025, City filed a stipulation and protective order – confidential designation only which the court GRANTED.

On April 20, 2026, Defendants Ford and Fuentes filed the instant motion for summary judgment, or in the alternative, summary adjudication (MSJ). On July 2, 2026, Plaintiffs filed an opposition. On July 10, 2026, Defendants Ford and Fuentes filed a reply.

LEGAL STANDARD:

“[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850, fn. omitted (Aguilar).) “Once the [movant] has met that burden, the burden shifts to the [other party] to show that a triable issue of one or more material facts exists as to that cause of action” (Code Civ. Proc., (CCP) § 437c, subd. (p)(2); see Aguilar, supra, at p. 850.) The party opposing summary judgment “may not rely upon the mere allegations or denials of its pleadings,” but rather “shall set forth the specific facts showing that a triable issue of material fact exists” (CCP § 437c, subd. (p)(2).) A triable issue of material fact exists where “the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (Aguilar, supra, at p. 850.)

The opposing party on a motion for summary judgment is under no evidentiary burden to produce rebuttal evidence until the moving party meets his or her initial movant's burden.¿ (Binder v. Aetna Life Insurance Company (1999) 75 Cal.App.4th 832, 840.)¿ Once the initial movant's burden is met, then the burden shifts to the opposing party to show, with admissible evidence, that there is a triable issue requiring the

weighing procedures of trial. (CCP § 437c(p)). The opposing party may not simply rely on his/her allegations to show a triable issue but must present evidentiary facts that are substantial in nature and rise beyond mere speculation. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 162.) Summary judgment must be granted “if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.))

The pleadings dictate the scope of a motion for summary judgment. “The materiality of a disputed fact is measured by the pleadings [citations], which ‘set the boundaries of the issues to be resolved at summary judgment.’ [Citations.]” (Hutton v. Fid. Nat'l Title Co. (2013) 213 Cal. App. 4th 486, 493.) The pleadings here are challenging to decipher.

ANALYSIS:

Evidentiary
Objections

The court **OVERRULES** Plaintiffs' evidentiary objections in full.

The court rules on Ford & Fuentes' evidentiary objections as follows:

OVERRULED

1, 2, 3, 4, 7, 10, 11, 12, 13

SUSTAINED as Hearsay

5 (Exhibit 8), 6 (Exhibit 10), 8, 9,

Request for
Judicial Notice

The court GRANTS Defendants Ford and Fuentes' request for judicial notice of the FAC. (Evid. Code § 452(d).)

Motion for Summary
Judgment/Adjudication

First Cause of
Action – Civil Rights Violations (Civ. Code §§ 51.7, 52.1(b), 52.1(h); Gov.
Code §§ 815.2, 820)

Ford & Fuentes contend summary judgment/adjudication in their favor is proper because there is no evidence that participated in the arrest of, or used force on, Mr. Anderson for any reason related to his speech or race or with specific intent to violate his constitutional rights. They add that Mr. Anderson's arrest was lawful (there was probable cause) and the use of force (holds and taser use) was reasonable due to Mr. Anderson's violent resistance.

Plaintiffs argue summary judgment/adjudication is not proper because there are triable facts concerning Ford & Fuentes' use of lethal force on Mr. Anderson.

Ford & Fuentes reply that there is no evidence they acted with reckless disregard for Mr.

Anderson's constitutional rights and otherwise reiterate their original arguments.

i.
Ralph Act

The Ralph Act provides that all persons “within the jurisdiction of this state have the right to be free from any violence, or intimidation by threat of violence, committed against their person or property because of political affiliation, or on account of any characteristic listed or defined in [Civ. Code § 51(b) or (e)] . . . or because another person perceives them to have one or more of those characteristics.” (Civ. Code § 51.7(b)(1).)

To state a claim, then, “a plaintiff must establish the defendant threatened or committed violent acts against the plaintiff or their

property, and a motivating reason for doing so was a prohibited discriminatory motive, or that the defendant aided, incited, or conspired in the denial of a protected right.” (Gabrielle A. v. County of Orange (2017) 10 Cal.App.5th 1268, 1291.) The second element requires evidence, not speculation for motive. (Ibid.)

Here, Ford & Fuentes met their burden that there was no prohibited motive behind their actions. Notably, the “goal” of the officers’ actions was to handcuff Mr. Anderson. (Separate Statement of Undisputed Material Facts (SSUMF) Nos. 30, 47.) Plaintiff, in turn, did not refute these goals. (Ibid.)

As such, the Ralph Act claim fails. But there is more.

ii.

Bane Act

The Bane Act provides: “ If a person or persons, whether or not acting under color of law, interferes by threat, intimidation, or coercion, or attempts to interfere by threat, intimidation, or coercion, with the exercise or enjoyment by any individual or individuals of rights secured by the Constitution or laws of the United States, or of the rights secured by the Constitution or laws of this state, the Attorney General, or any district attorney or city attorney may bring a civil action for injunctive and other appropriate equitable relief in the name of the people of the State of California, in order to protect the peaceable exercise or enjoyment of the right or rights secured.” (Civ. Code § 52.1(b).)

The claim has two elements: “(1) intentional interference or attempted interference with a state or federal constitutional or legal right, and (2) the interference or attempted interference was by threats, intimidation or coercion.” (A.B. v. County of San Diego (2025) 112 Cal.App.5th 404, 416.)

“Under the Fourth Amendment, claims that police officers used excessive force in the course of an arrest, investigatory stop or other seizure of a free citizen are analyzed under a reasonableness standard: ‘police officers may use force to the extent that it is objectively reasonable under the circumstances.’” (A.B., supra, 112 Cal.App.5th at p. 417.) The factors courts use to determine whether force

was excessive or unreasonable include: “the severity of the crime at issue, whether the suspect poses an immediate threat to the safety of the officers or others, and whether he is actively resisting arrest or attempting to evade arrest by flight.” (Ibid.)

Reasonableness of force is judged from the perspective of a reasonable officer on the scene and not hindsight. (Ibid.)

“The ‘inherently fact-specific determination whether the force used to effect an arrest was reasonable under the Fourth Amendment should only be taken from the jury in rare cases.’” (Id. at p. 418.)

“Resistance, or the reasonable perception of resistance, does not entitle police officers to use any amount of force to restrain a suspect.” (A.B., supra, 112 Cal.App.5th at p. 421.) “[I]f the use of force causes serious injury or death, a reasonable jury could certainly still conclude that the force was excessive, even if the person had been resisting at the time.” (Ibid.) “Resistance is merely one of the factors the jury can consider in determining whether force is excessive.” (Ibid.)

Here, Ford & Fuentes met their initial burden that they used reasonable force. First, they provide evidence that Mr. Anderson was involved in a felony high risk stop. (SSUMF No. 18.) Second, they provide evidence that Mr. Anderson was running away and resisted arrest despite commands to stop and despite repeated use of a taser and holds. (SSUMF Nos. 15, 20, 21 [partial compliance], 22 [multiple commands], 23 [non-compliance], 24, 25 [Mr. Anderson grabbed Fuentes], 26 [tried to run away], 27 [more commands], 28 [unable to secure Mr. Anderson], 36 [brandish taser with warning], 37 [taser warning], 38 [control technique], 40 [clavicle pressure], 44 [unable to secure Mr. Anderson's hands], 46 [taser warning and first deployment], 49 [second taser deployment], 50 [third taser deployment], 51 [Mr. Anderson still fighting], 53 [third taser deployment], 56 [fourth taser deployment], 57 [fifth taser deployment], 60 [sixth taser deployment], 61 [Mr. Anderson's upper body under control], 63 [hobble placement].) The burden shifts.

Plaintiffs, in turn, met their burden. Critically, Plaintiffs (as do Ford & Fuentes) rely on the body worn video (BWV) of the incident to support reasonable inferences that the force was excessive. (See, e.g., SSUMF No. 25 [the video does not establish that Mr. Anderson intended or attempted to pull Fuentes down.]; see also Plaintiff's Additional Statement of Facts (AMF) No. 10.) The video is open to more than one reasonable

interpretation of the events. What is more, the court is hard-pressed to conclude, as a matter of law, that deploying a taser sixth times is reasonable force. (AMF No. 26 [Mr. Anderson was prone the entire time], 28 [final two taser applications violated Department policy].)[1] Therefore, summary judgment/adjudication is not appropriate on this claim because there is a disputed material fact as to at least two deployments of the taser.

Additionally, since the court cannot split a cause of action at summary judgment/adjudication, the court cannot grant the motion on the first cause of action.

Accordingly, the court DENIES Ford & Fuentes' MSJ on the first cause of action.

Second Cause of
Action – Assault & Battery (Gov. Code §§ 815.2, 820)

Ford & Fuentes contend summary judgment/adjudication in their favor is proper because Plaintiffs cannot prove unreasonable force.

Plaintiffs' argument here is the same as above.

Ford & Fuentes' arguments on reply are unchanged.

"The elements of civil battery are: (1) defendant intentionally performed an act that resulted in a harmful or offensive contact with the plaintiff's person; (2) plaintiff did not consent to the contact; and (3) the harmful or offensive contact caused injury, damage, loss or harm to plaintiff." (A.B. v. County of San Diego (2025) 112 Cal.App.5th 404, 416.)

The issue here is, again, excessive force. The court adopts is analysis under the first cause of action.

Accordingly, the court DENIES Ford & Fuentes' MSJ on the second cause of action.

Third Cause of
Action - False Imprisonment (Gov. Code §§ 815.2, 820)

Ford & Fuentes contend summary judgment/adjudication in their favor is proper because the arrest was made upon probable cause and was lawful.

Plaintiffs did not address this claim in their opposition.

The elements of a claim for false imprisonment are: “(1) the nonconsensual, intentional confinement of a person, (2) without lawful privilege, and (3) for an appreciable period of time, however brief.” (Jon Davler, Inc. v. Arch Ins. Co. (2014) 229 Cal.App.4th 1025, 1034.)

Here, Ford & Fuentes met their initial burden. Notably, it is undisputed that Mr. Anderson was a suspect in a hit and run accident that resulted in bodily injury – a felony. (SSUMF No. 18.) Therefore, the arrest was lawful for purposes of this claim. Since Plaintiffs proffered no opposition, this claim fails.

Accordingly, the court GRANTS Ford & Fuentes’ MSJ on the third cause of action.

Fourth Cause of
Action – Negligence (Gov. Code §§ 815.2, 820)

Ford & Fuentes contend summary judgment/adjudication in their favor is proper because their conduct was objectively reasonable since they had probable cause to make the arrest and it was lawful and so they did not breach a duty to Mr. Anderson.

Plaintiffs’ argument here is the same as for the first cause of action. They do add that there is also a triable issue of fact as to Mr. Anderson’s cause of death.

Ford & Fuentes’ arguments on reply are unchanged.

“For a negligence claim, the plaintiff must show that the defendant had a duty to use due care, that he breached that duty, and that the breach was the proximate or legal cause of the resulting injury.” (A.B., supra 112 Cal.App.5th at p. 416.) The same factors courts use to analyze reasonable force apply to negligence claims. (Id. at p. 417.)

The only issue here concerns Ford & Fuentes' excessive force. The court adopts its reasoning under the first cause of action here.

Accordingly, the court DENIES Ford & Fuentes' MSJ on the fourth cause of action.

CONCLUSION:

For
the foregoing reasons, the Court decides the pending motion as follows:

1. Motion

for summary judgment/adjudication is DENIED as to the first, second, and fourth causes of action;

2. Motion

for summary adjudication is GRANTED as to the third cause of action.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: July 22, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court

[1]

This is relevant because both Ford and Fuentes aver that LAPD policy and training did not provide for a limit on the number of times a taser could be used in drive stun mode and that their training required them to reassess the effectiveness of the taser after each use. (SSUMF No. 9.)